

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

Present:

Justice Qazi Faez Isa, CJ
Justice Irfan Saadat Khan
Justice Naeem Akhtar Afghan

Criminal Original Petition No. 6 of 2024

[Contempt Proceedings against Senator Faisal Vawda]

Attendance:

On Court's Notice: Mr. Mansoor Usman Awan,
Attorney-General for Pakistan.
Malik Javed Iqbal,
Addl. Attorney-General for Pakistan.
Ms. Mariam Ali Abbasi, Adv.

For Contemnors:

Mr. Faisal Vawda: Mr. Moiz Ahmed, ASC.
a/w Mr. Faisal Vawda.

Mr. Mustafa Kamal: Mr. Farough Naseem, ASC.
a/w Mr. Mustafa Kamal.

On behalf of Supreme
Court Bar Association: Mr. Mr. Shehzad Shaukat, ASC.
President, SCBA.

For PEMRA: Mr. Saad Mumtaz Hashmi, ASC.

On Court's Call: Hafiz Arfat Ahmed, ASC.

Date of Hearing: 05.06.2024.

ORDER

Pursuant to the notices issued to Mr. Faisal Vawda and Mr. Mustafa Kamal, they are respectively represented by learned Mr. Moiz Ahmed and learned Mr. Farough Naseem.

2. Mr. Farough Naseem states that his client has submitted an unconditional and unqualified written apology (Criminal Misc. Application No. 682 of 2024) with regard to what was said in the press conference held on 16 May 2024 and throws himself at the mercy of the Court and seeks forgiveness.

3. As regards Mr. Faisal Vawda the learned counsel points out that he has filed Criminal Misc. Application No. 689 of 2024 setting out the facts,

however, if another opportunity is granted he may submit an additional reply.

4. The Pakistan Electronic Media Regulatory Authority ('**PEMRA**') has filed transcript of the two press conferences (Criminal Misc. Application No. 683 of 2024) and mentions that 34 channels had live broadcast the press conference of Mr. Faisal Vawda and 28 channels had live broadcast the press conference of Mr. Mustafa Kamal. In paragraph 8 of our order dated 17 May 2024 we had noted, '*That television channels and all those who broadcast, re-broadcast and/or publish material constituting contempt of Court may also be committing contempt of Court.*' The broadcast of the press conferences on the said channels prima facie appears to constitute contempt. Therefore, let **notices** be issued to all the said channels, to be served through PEMRA, and they are called upon to submit their explanations/replies within two weeks as to why they should not be proceeded against for contempt of Court.

5. The learned Attorney-General for Pakistan shall mark the transcripts where he considers something was said which may constitute contempt of Court. The learned Hafiz Arfat Ahmed who is present in Court volunteers to provide a list of verses of the Holy Qur'an and sayings of Prophet Muhammad (peace and blessings be upon him) with regard to backbiting, hurtful and/or slanderous speech.

6. To come up on 28 June 2024. Both the alleged contemnors and the representatives of the said television channels are directed to be in attendance on the next date of hearing.

Chief Justice

Judge

Judge

Islamabad:
05.06.2024
(M. Tauseef)